



The American Planning Association's
Professional Institute
**American Institute
of Certified Planners**

Creating Great Communities for All

AICP Code of Ethics and Professional Conduct

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Revised April 1, 2016

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This AICP Code of Ethics and Professional Conduct serves three purposes: first, defining the aspirational principles for all those who participate in the planning process, whether as planners, as advisory bodies, or as decision-makers (Section A); second, defining the rules of practice and behavior to which all members of the American Institute of *Certified Planners* are held accountable (Section B); and third, defining the procedures for enforcement of these rules (Sections C, D, and E). Please refer to a [glossary of frequently](#) used terms in the Code located at the bottom of this page.

Our primary obligation as planners and active participants in the planning process is to **serve the public interest** and these principles further that purpose. All who engage in the planning process should seek to achieve high standards of integrity, proficiency, and knowledge. As the basic values of society can come into competition with each other, so can the values we espouse under this Code. For AICP planners, both the principles and the rules are intended to be used together. The aspirational principles, while not enforceable, present the foundation for the profession's shared values, and the basis for the rules.

All those who participate in planning should commit themselves to making ethical judgments in the public interest balancing the many competing agendas with careful consideration of the facts and context, informed by continuous, open debate.

To meet our obligation to the public, we aspire to the following principles:

Section A: Principles to Which We Aspire

1. People who participate in the planning process shall continuously pursue and faithfully serve the public interest.

1. Examine our own cultures, practices, values, and professional positions in an effort to reveal and understand our conscious and unconscious biases and privileges as an essential first step so we can better serve a truly inclusive public interest promoting a sense of belonging.
2. Be conscious of the rights of others. Develop skills that enable better communication and more effective, respectful, and compassionate planning efforts with all communities, especially underrepresented communities and marginalized people, so that they may



fully participate in planning. Respect the experience, knowledge, and history of all people.

3. Have special concern for the long-range consequences of past and present actions.
4. Pay special attention to the interrelatedness of decisions and their unintended consequences.
5. Incorporate equity principles and strategies as the foundation for preparing plans and implementation programs to achieve more socially just decision-making. Implement, for existing plans, regulations, policies and procedures, changes which can help overcome historical impediments to racial and social equity. Develop metrics and track plan implementation over time to measure and report progress toward achieving more equitable outcomes.
6. Systematically and critically analyze ethical issues in the practice of planning. Strengthen organizational capabilities to apply ethical principles in serving the public, including establishing procedures that promote ethical behavior, mentoring emerging professionals in ethical behavior and holding individuals and organizations accountable for their conduct.

2. People who participate in the planning process shall do so with integrity.

1. Provide timely, adequate, clear, accessible, and accurate information on planning issues to all affected persons, to governmental bodies, to the public, to clients and to decision makers.
2. Facilitate the exchange of ideas and ensure that people have the opportunity for meaningful, timely, and informed participation in the development of plans and programs that may affect them. Participation should be broad enough to include those who lack formal organization or influence, especially underrepresented communities and marginalized people. Attention and resources should be given to issues of equity, diversity, and inclusion and should reflect the diversity of the community.
3. Promote excellence in design. Conserve and preserve the integrity and heritage of the natural and built environment. Use principles of sustainability and resilience as guiding influences in our work.
4. Identify the human and environmental consequences of alternative actions including the short and long-term costs and benefits. Identify social and cultural values which should be preserved as well as natural elements.
5. Enhance our professional education and training in our career as well as in our ability to work as a participant in the planning process and with allied professionals.
6. Educate and seek to empower the public about planning issues and their relevance to everyone's lives.
7. Describe and comment on the work and views of other professionals in a fair and professional manner.



8. Respect the rights of all persons and groups and do not discriminate against or harass others.

3. People who participate in the planning process shall work to achieve economic, social and racial equity.

1. Create plans that ensure equitable access to resources and opportunities which, in turn, structure prospects for upward economic mobility, a sense of belonging, and an enhanced quality of life. Recognize our unique responsibility to eliminate historic patterns of inequity tied to planning decisions represented in documents such as zoning ordinances and land use plans
2. Seek social justice by identifying and working to expand choice and opportunity for all persons, emphasizing our special responsibility to plan with those who have been marginalized or disadvantaged and to promote racial and economic equity. Urge the alteration of policies, institutions, and decisions that do not help meet their needs.
3. Recognize and work to mitigate the impacts of existing plans and procedures that result in patterns of discrimination, displacement, or environmental injustice. Plan for anticipated public and private sector investment in historically low-income neighborhoods to ensure benefits defined by the local community. Promote an increase in the supply and quality of affordable housing and improved services and facilities with equal access for all residents, including people with disabilities.
4. Promote the inherent rights of indigenous people and -work with indigenous peoples on developments affecting them and their lands and resources

4. People who participate in the planning process shall safeguard the public trust.

1. Deal fairly with all participants in the planning process.
2. Exercise fair, honest, skilled, informed and independent professional judgment.
3. Do not let any official action be influenced by personal relationships.
4. Serve as advocates for the public or private sector only when the client's objectives are legal and consistent with the public interest.
5. Avoid a conflict of interest or even the appearance of a conflict of interest in accepting assignments from clients or employers.
6. Disclose to the public all personal and pecuniary interests, considered broadly, that a participant, serving as an advisor or decision-maker, may have regarding any planning process decision to be made. If at all possible, abstain completely from direct or indirect participation as an advisory or decision-maker in any matter in which there is a personal or pecuniary interest, and leave any chamber in which such a matter is under deliberation
7. Neither seek nor accept any gifts or favors, nor offer any, under circumstances in which it might reasonably be inferred that the gifts or favors were intended or expected to



influence a participant's objectivity as an advisor or decision-maker in the planning process.

8. Do not participate in any matter unless adequately prepared and able to render thorough and diligent services.
9. Do not deliberately commit a wrongful act which reflects adversely on the planning process.
10. Do not seek business by stating or implying the ability or willingness to influence decisions by improper means.
11. Expose corruption wherever discovered.

5. Practicing planners shall improve planning knowledge and increase public understanding of planning activities.

1. Contribute to the development of, and respect for, our profession by improving knowledge and techniques, and sharing the results of experience and research that contribute to the body of planning knowledge. Make work relevant to solving community problems and increase the public's understanding of planning activities.
2. Examine the applicability of planning theories, methods, research, and standards to the facts and analysis of each particular situation and do not accept the applicability of a customary solution without first establishing its appropriateness to the situation.
3. Strive to achieve high standards of professionalism, including integrity, knowledge, and professional development. Obtain professional education throughout one's planning career and for those that are Members of AICP, comply with Certification Maintenance requirements.
4. Expand recognition of the value of AICP and FAICP credentials and acknowledge those who achieve and maintain it.
5. Commit to the advancement of the planning profession. Contribute time and resources to the professional development of students, interns, beginning professionals, and other colleagues. Increase the opportunities for members of underrepresented groups to enter and succeed in the profession, and to achieve AICP certification.
6. Contribute time and effort to our communities, particularly to those groups lacking in adequate planning resources, through pro bono planning activities.

Section B: Our Rules of Conduct

We adhere to the following Rules of Conduct informed by the Aspirational Principles, and we understand that our Institute will enforce compliance with these rules. If we fail to adhere to these Rules we could receive sanctions, the ultimate being the loss of our certification:

Quality and Integrity of Practice



1. We shall not deliberately fail to provide adequate, timely, clear and accurate information on planning issues.
2. We shall not accept an assignment from a client or employer when the services to be performed involve conduct that we know to be illegal or in violation of this Code.
3. We shall not accept work beyond our professional competence, but may with the understanding and agreement of the client or employer, accept such work to be performed under the direction of, another professional competent to perform the work and acceptable to the client or employer.
4. We shall not accept work for a fee, or pro bono, that we know cannot be performed with the promptness required by the prospective client, or that is required by the circumstances of the assignment.
5. We shall not direct or pressure other professionals to make analyses or reach findings not supported by available evidence.
6. We shall not deliberately commit any wrongful act, whether or not specified in the Rules of Conduct, that reflects adversely on our professional fitness or the planning profession.

Conflict of Interest

7. We shall not, as public officials or employees, accept from anyone other than our public employer any compensation, commission, rebate, or other advantage that may be perceived as related to our public office or employment.
8. We shall not perform work on a project for a client or employer if, in addition to the agreed upon compensation from our client or employer, there is a possibility for direct personal or financial gain to us, our family members, or persons living in our household, unless: a) our client or employer, after full prior written disclosure from us, consents in writing to the arrangement; and b) we make full disclosure of the potential conflict part on the public record at every public meeting and in all written reports related to the work.

Improper Influence/Abuse of Position

9. As public officials or public employees, we shall not engage in private communications with planning process participants if the discussions relate to a matter over which we have authority to make a binding, final determination.
10. We shall not engage in private communications with decision makers in the planning process in any manner prohibited by law or by agency rules, procedures, or custom.
11. We shall not solicit prospective clients or employment through use of false or misleading claims, nor shall we, in the conduct of our work, imply an ability to improperly influence decisions.



12. We shall not use the power of any office to seek or obtain a special advantage that is not a matter of public knowledge or is not in the public interest.

Honesty and Fair Dealing

13. We shall not disclose or use to our advantage, nor that of a subsequent client or employer, information gained in a professional relationship that the client or employer has requested be held inviolate or that we should recognize as confidential because its disclosure could result in detriment to the client or employer., except when disclosure is required: (1) by process of law, or (2) to prevent a clear violation of law, or (3) to prevent a substantial injury to the public.
14. We shall not deliberately misrepresent the qualifications, views and findings of other professionals.
15. We shall not misstate our education, experience, training, or any other facts which are relevant to our professional qualifications.
16. We shall not use the product of others' efforts to seek professional recognition, credit, or acclaim intended for producers of original work.
17. We shall not fail to disclose the interests of our client or employer when participating in the planning process. Nor shall we participate in an effort to conceal the true interests of our client or employer.

Responsibility to Employer

18. We shall not, as employees, undertake other employment in planning or a related profession, whether or not for financial remuneration, without having made full written disclosure to the employer who furnishes our pay and having received subsequent written permission to undertake additional employment, unless our employer has a written policy permitting such employment without consent. In no case shall a planner engage in any outside work that would create an actual conflict of interest.
19. We shall not accept an assignment from a client or employer to publicly advocate a position on a planning issue that is significantly different to a position we publicly advocated for a previous client or employer within the past three years unless (1) we determine in good faith our change of position will not cause present detriment to our previous client or employer, and (2) we make full written disclosure of the conflict to our previous and current client or employer.

Discrimination/Harassment

20. We shall not commit or ignore an act of discrimination or harassment.

Bringing a Charge/Lack of Cooperation with Ethics Officer



21. We shall not withhold cooperation or information from the AICP Ethics Officer or the AICP Ethics Committee if a charge of ethical misconduct has been filed against us or if it is determined by the Ethics Officer or Ethics Committee that we have information/knowledge relevant to a charge filed against another AICP member.
22. We shall not harass, retaliate or threaten retaliation against a person who has filed a charge of ethical misconduct against us or another planner, or who is cooperating in the Ethics Officer's investigation of an ethics charge.
23. We shall not use the AICP ethics process for any inappropriate purpose, including threatening to file, or filing an ethics charge against another planner for personal, pecuniary, or professional gain or filing of a meritless complaint against another planner.
24. We shall not fail to immediately notify the Ethics Officer by both receipted Certified and Regular First-Class Mail if we are convicted of a "serious crime" as defined in Section E of the Code; nor immediately following such conviction shall we represent ourselves as Certified Planners or Members of AICP until our membership is reinstated by the AICP Ethics Committee pursuant to the procedures in Section E of the Code.

Section C: Advisory Opinions

1. Introduction

Any person, whether or not an AICP member, may seek informal advice from the Ethics Officer, and any AICP member may seek a formal opinion from the Ethics Committee, on any matter relating to the Code of Ethics and Professional Conduct. In addition, the Ethics Committee may, from time to time, issue opinions applying the Code to ethical matters relating to planning.

2. Informal Advice

- a) Any person with a question about whether specific conduct conforms to the Code of Ethics and Professional Conduct may seek informal advice from the Ethics Officer. Any such person should contact the Ethics Officer to arrange a time to discuss the issue. The Ethics Officer will endeavor to schedule a call promptly and to provide the advice promptly.
- b) Informal advice will be given orally. However, the Ethics Officer will keep a record of the issue raised and the advice given.
- c) Informal advice is intended to assist the person who seeks it, but it is not binding on AICP. Nevertheless, the Ethics Committee will take it into consideration if the Committee is subsequently called upon to consider a charge of misconduct against a Certified Planner who relied on the advice.

3. Formal Advisory Opinions Requested by A Member



- a) Any AICP member with a question about whether specific conduct conforms to the Code of Ethics and Professional Conduct may seek a formal opinion from the Ethics Committee. Any such member should send a detailed description of the relevant facts and a clear statement of the question to the Ethics Officer.
- b) The Ethics Officer shall review each such request and determine whether there is sufficient information to permit a fully informed response or whether additional information is required.
- c) The Ethics Committee will not issue an Advisory Opinion if it determines that the request concerns past conduct that may be the subject of a charge of misconduct. It may also decline to issue an Advisory Opinion for any other reason. The Committee may, but is not required to, provide a reason for a decision not to issue an opinion.
- d) If the Ethics Committee determines to issue an Advisory Opinion, it will endeavor to do so within ninety (90) days after receiving all information necessary to the provision of the opinion. Every Advisory Opinion will be in writing.
- e) Any member who acts in compliance with a formal Advisory Opinion will have a defense to a charge of misconduct that is based on conduct permitted by the Opinion.
- f) The Ethics Committee, in its sole discretion, shall determine whether, and how, to publish any formal Advisory Opinion. If the Committee determines to publish an Advisory Opinion, the published Opinion will not, without appropriate consent, include the name or other identifying information of any person except to the extent that identifying information is helpful in setting forth the issue or in explaining the Committee's decision.
- g) Any AICP member who believes that a published formal Advisory Opinion is incorrect or incomplete may write to the Ethics Officer explaining the member's thinking and requesting reconsideration. The Ethics Officer shall transmit all such communications to the Ethics Committee. That Committee shall review such communications and determine what, if any, changes to make. The decision of the Committee shall be final.

4. Formal Advisory Opinions Issued Without Request of A Member

- a) The Ethics Committee may from time to time issue, without a request from a member, formal Advisory Opinions relating to the Code of Ethics and Professional Conduct when it believes that an Opinion will provide useful guidance to members.
- b) All formal Advisory Opinions issued under this paragraph shall be in writing and shall be published to the entire membership.
- c) Any AICP member who believes that a formal Advisory Opinion issued under this paragraph is incorrect or incomplete may write to the Ethics Officer explaining the member's thinking and requesting reconsideration. The Ethics Officer shall transmit all such communications to the Ethics Committee. That Committee shall review such



communications and determine what, if any, changes to make. The decision of the Committee shall be final.

5. Annual Report of the Ethics Officer

- a) Prior to January 31 of each year, the Ethics Officer shall provide to the AICP Commission and to the Ethics Committee an Annual Report of all formal Advisory Opinions and all interpretations of the Code issued during the preceding calendar year. That report need not contain the full text of each formal Advisory Opinion and interpretation of the Code.
- b) The AICP Commission shall publish an Annual Report on ethics matters to the membership.

Section D: Adjudication of Complaints of Misconduct

1. Filing a Complaint

- a) Any person, whether or not an AICP member, may file an ethics complaint against a Certified Planner. An ethics complaint shall be sent to the AICP Ethics Officer on a form developed by the Ethics Officer and posted on the AICP website. The complaint must be signed and include contact information so that the Ethics Committee and the Ethics Officer will know with whom to follow up if questions arise or if the situation otherwise requires follow up. The person making the complaint ("the complainant") may request confidentiality. The AICP will attempt to honor that request. However, it cannot guarantee confidentiality and will disclose the identity of the complainant if disclosure is needed in order to reach an informed result or otherwise to advance the thoughtful consideration of the complaint. The complaint may be accompanied by a brief cover letter.
- b) The complaint shall identify the Certified Planner against whom the complaint is brought, describe the conduct at issue, cite the relevant provision(s) of the Code of Ethics and Professional Conduct, and explain the reasons that the conduct is thought to violate the Code.
- c) The complaint should be accompanied by all relevant documentation available to the complainant.
- d) The Ethics Officer shall determine whether the complaint contains all information necessary to making a fully informed decision. If the complaint does not contain all such information, the Ethics Officer shall contact the complainant to try to obtain the information.
- e) The Ethics Officer shall maintain, for use by the Ethics Committee, a log of all complaints against Certified Planners.

2. Preliminary Review



- a) The Ethics Officer shall review each complaint, together with any supporting documentation, to make a preliminary determination of whether a violation may have occurred. Before making this determination, the Ethics Officer may request from the complainant any additional information that the Officer deems relevant.
- b) Within thirty (30) days after receiving all information that the Ethics Officer deems necessary to make a preliminary determination, the Ethics Officer shall make a preliminary determination whether a violation may have occurred.
- c) If the preliminary determination of the Ethics Officer is that it is clear that no violation has occurred, the complaint shall be dismissed. The complainant shall be so notified. Appeal of the determination of the Ethics Officer is only available to members of AICP. If the complainant is a member of AICP, the complainant shall have twenty (20) days from the date of notification to appeal the dismissal of the complaint to the Ethics Committee.
- d) If the preliminary determination of the Ethics Officer is that a violation may have occurred — or if, on appeal, the Ethics Committee reverses a preliminary dismissal, the Ethics Officer shall, within thirty (30) days, provide the complaint to the Certified Planner against whom the complaint was made ("the respondent"). The Ethics Officer shall request from the respondent a detailed response to the complaint, and any supporting documentation.

3. Fact Gathering

- a) The respondent shall have thirty (30) days from the date of notification from the Ethics Officer to provide a response to the complaint, as well as any supporting documentation. The Ethics Officer may extend this time, for good cause shown, for a period not to exceed fourteen (14) days.
- b) The Ethics Officer shall provide the response of the respondent to the complainant, and shall give the complainant an opportunity to comment on the response within fourteen (14) days.
- c) If the Ethics Officer determines that additional information is needed from either the complainant or the respondent, the Ethics Officer shall attempt to obtain such information. The parties shall have fifteen (15) days to provide the requested additional information, with up to a fifteen (15) day extension at the discretion of the Ethics Officer if a request is made for additional time.

4. Exploration of Settlement

- a) At any point in the process, the Ethics Officer may, after consultation with the Ethics Committee, attempt to negotiate a settlement of the complaint in accordance with the Code of Ethics and Professional Conduct.



- b) The Ethics Committee shall be notified of — and permitted to comment on — any potential settlement at an early stage. Any settlement must be approved by the Ethics Committee before becoming final. Upon approval by the Ethics Committee, a settlement agreement shall be signed by the respondent and, where appropriate, by the complainant.
- c) If a negotiated settlement is approved by the Ethics Committee and is signed in accordance with paragraph 4-b, the matter will be concluded, and no further action will be taken by AICP.

5. Decision

- a) If neither the Ethics Officer nor the Ethics Committee determines to explore settlement or if the parties are unwilling to engage in settlement discussions or if a settlement is not reached, the Ethics Officer shall, after considering timely input from the parties, issue a written decision on the complaint. The Ethics Officer, at his or her sole discretion, may determine whether a hearing needs to be held. A hearing will be held by telephone or other electronic means unless all parties and the Ethics Officer agree that it should be held in person. The expenses of each party in connection with any hearing, such as transcripts, travel, and attorneys' fees, will be borne by that party.
- b) The Ethics Officer may determine that there is inadequate evidence of an ethics violation and therefore dismiss the complaint. Alternatively, the Ethics Officer may find that there has been an ethics violation. In either situation, the Ethics Officer shall explain the basis for the decision in a written opinion that cites and discusses the relevant provision(s) of the Code of Ethics and Professional Conduct.
- c) If the decision is that there has been a violation, the Ethics Officer shall impose such discipline as that Officer deems appropriate. The discipline may be: (1) a confidential letter of admonition, (2) a public letter of admonition, (3) suspension of AICP membership, or (4) revocation of AICP membership. The Ethics Officer shall explain the basis for the discipline imposed and may attach such conditions, e.g. requirement to get additional ethics training, as the Officer deems just.
- d) The Ethics Officer shall transmit the decision to the Ethics Committee and shall notify the parties of the decision. However, the Ethics Officer may determine not to disclose the remedy to a complainant who is not a member of AICP.

6. Appeal

- a) Only current members of AICP may appeal a determination of the Ethics Officer. Within thirty (30) days after issuance of the written decision of the Ethics Officer, either the AICP complainant or respondent may appeal the decision to the Ethics Committee by filing a timely written notice of appeal with the Ethics Officer.



- b) If an appeal is timely filed, the party filing the appeal shall, within fourteen (14) days, provide the Ethics Officer with a written statement as to the basis for the appeal. The Ethics Officer shall, within ten (10) days, transmit that document to the party against whom the appeal is filed. That party shall have thirty (30) days to provide the Ethics Officer with a written statement of his or her position on the appeal. The Ethics Officer shall transmit all written statements of the parties to the Ethics Committee within ten (10) days after the record is complete.
- c) After receiving any timely filed statements of the parties, the Ethics Committee shall issue a written decision on the appeal. Before issuing a decision, the Ethics Committee, in its sole discretion, may consult with the Ethics Officer. The Ethics Committee may also, in its sole discretion, determine whether to hold a hearing at which the parties may present their positions and answer questions posed by the Committee. A hearing will be held by telephone or other electronic means unless all parties and the Ethics Committee agree that it should be held in person. The expenses of each party in connection with any hearing, such as transcripts, travel, and attorneys' fees, will be borne by that party.
- d) The Ethics Committee may (1) affirm the decision of the Ethics Officer; (2) affirm the decision but impose a different remedy; (3) vacate the decision of the Ethics Officer and return the case to the Ethics Officer for additional investigation, consideration of different Code sections or issues, or any other follow up; or (4) vacate the decision of the Ethics Officer and issue its own decision.
- e) A decision to affirm the decision of the Ethics Officer, to impose a different remedy, or to vacate that decision and to issue the Ethics Committee's own decision shall be final.
- f) If the decision is to return the case to the Ethics Officer for follow up, the Ethics Officer may seek to explore settlement or may issue a decision consistent with the decision of the Ethics Committee. Before issuing such a decision, the Ethics Officer may seek additional input from the parties in a manner and format consistent with the Code of Ethics and Professional Conduct.

7. Effect of Dropping of Charges by Complainant or Resignation by Respondent

- a) If charges are dropped by the complainant, the Ethics Committee may, at its sole discretion, either terminate the ethics proceeding or continue the process without the complainant.
- b) If the respondent resigns from AICP or lets membership lapse after a complaint is filed but before the case is finalized, the Ethics Committee may, at its sole discretion, either terminate the ethics proceeding or continue the process. As in any situation, the Ethics Committee may also determine to file a complaint with the appropriate law enforcement authority if it believes that a violation of law may have occurred.

8. Reporting



- a) Any written decision of the Ethics Committee may, at the discretion of the Committee, be published and titled "Opinion of the AICP Ethics Committee".
- b) Any written decision of the Ethics Officer shall be referenced in the Annual Report of the Ethics Officer.

Section E: Discipline of Members

1. General

AICP members are subject to discipline for certain conduct. This conduct includes (a) conviction of a serious crime as defined in paragraph 3; (b) conviction of other crimes as set forth in paragraph 4; (c) a finding by the Ethics Committee or Ethics Officer that the member has engaged in unethical conduct; (d) loss, suspension, or restriction of state or other governmental professional licensure; (e) failure to make disclosure to AICP of any conviction of a serious crime or adverse professional licensure action; or (f) such other action as the Ethics Committee or the Ethics Officer, in the exercise of reasonable judgment, determines to be inconsistent with the professional responsibilities of a Certified Planner.

2. Forms of Discipline

The discipline available under this Policy includes: (a) a confidential letter of admonition, (b) a public letter of admonition, (c) suspension of AICP membership, or (d) revocation of AICP membership. The Ethics Officer or the Ethics Committee may attach conditions to these disciplinary actions, such as the writing of a letter of apology, the correction of a false statement or statements, the taking of an ethics course, the refunding of money, or any other conditions deemed just in light of the conduct in question.

3. Conviction of a Serious Crime

- a) The membership of a Certified Planner shall be revoked if the Planner has been convicted of a "serious crime". Membership shall be revoked whether the conviction resulted from a plea of guilty or nolo contendere, from a verdict after trial, or otherwise. Membership shall be revoked even if the Planner is appealing a conviction, but it will be reinstated if the conviction is overturned upon appeal.
- b) For purposes of this Policy, the term "serious crime" shall mean any crime that, in the judgment of the Ethics Committee or the Ethics Officer, involves false swearing, misrepresentation, fraud, failure to file income tax returns or to pay tax, deceit, bribery, extortion, misappropriation, theft, or physical harm to another.

4. Conviction of Other Crimes



- a) Discipline may also be imposed if a Certified Planner has been convicted of a crime not included within the definition of "serious crime," including an action determined by the Ethics Committee or the Ethics Officer to be inconsistent with the professional responsibilities of a Certified Planner.
- b) Before any discipline is imposed under this section, the member shall have a right to set forth his or her position in writing to the Ethics Officer. The Ethics Officer shall, in that Officer's sole discretion, determine whether to give the member a hearing. The Ethics Officer shall notify the member of the decision.
- c) A member who has had discipline imposed by the Ethics Officer shall have thirty (30) days from the date of notification of the adverse decision to file an appeal to the Ethics Committee. The member may do so by filing a timely notice of appeal with the Ethics Officer. The notice shall be accompanied by a statement of the basis for the appeal. The Ethics Officer will transmit any appeal and accompanying notice to the Ethics Committee. That Committee shall determine, in its sole discretion, whether to grant a hearing. The Ethics Committee shall, after considering the relevant information, issue a written opinion on the appeal.

5. Unethical Conduct

The forms of discipline set forth in paragraph 2 shall apply to any member who is found to have engaged in unethical conduct in accordance with the procedures established in the Policy on Adjudication of Complaints of Misconduct.

6. Revocation, Suspension, or Restriction of Licensure

- a) The Ethics Committee or Ethics Officer shall impose such discipline as the Committee or Officer regards as just if a state or other governmentally-issued professional license of a Certified Planner has been revoked, suspended, or restricted for any reason relating to improper conduct by the Planner.
- b) Before any discipline is imposed under this section, the provisions of section 4 (b) and (c) shall apply.

7. Duty to Notify Ethics Officer

- a) A member who has been convicted of a serious crime or who has had his or her state or other governmentally-issued professional license revoked, suspended, or restricted for any reason relating to improper conduct by the member shall promptly report the relevant development to the Ethics Officer.



- b) Failure of a member to report that he or she has been convicted of a serious crime or has had a professional license revoked, suspended, or restricted for a reason relating to improper conduct by that member may itself result in discipline of that member.

8. Other Conduct Inconsistent with the Responsibilities of a Certified Planner

- a) The Ethics Officer shall have the right to discipline any member for any conduct not otherwise covered by this Policy that the Officer determines to be inconsistent with the responsibilities of a Certified Planner.
- b) Conduct covered by this section shall include, but not be limited to, a finding in a civil case that the member has engaged in defamation or similar unlawful action, has knowingly infringed the copyright or other intellectual property of another, or has engaged in perjury.
- c) Before any discipline is imposed under this section, the provisions of section 4-b and 4-c shall apply.

9. Petition for Reinstatement

- a) Any Certified Planner whose membership or certification is revoked may petition the Ethics Committee for reinstatement no sooner than five years from the time of revocation. The Ethics Committee shall determine, in its sole discretion, whether to afford the petitioner a hearing and/or whether to seek additional information. The Committee shall determine, in its sole judgment, whether reinstatement is appropriate and what, if any, conditions should be applied to any such reinstatement. The Ethics Officer shall transmit the reinstatement determination to the Planner.
- b) If the Ethics Committee denies the Petition, that Officer shall advise the Planner of the opportunity to file a subsequent petition after twelve (12) months have elapsed from the date of the determination.

10. Publication of Disciplinary Actions

The Ethics Committee, in its sole discretion, may publish the names of members who have had disciplinary action imposed and to state the nature of the discipline that was imposed. The authority to publish shall survive the voluntary or involuntary termination or suspension of AICP membership and certification. The Ethics Committee, in its sole discretion, may also determine not to publish such information or to publish only so much of that information as it deems appropriate.



AICP Code of Ethics and Professional Conduct Draft Glossary

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Diversity

"Diversity is an inclusive concept which encompasses, but is not limited to, race, ethnicity, class, gender, age, sexuality, ability, educational attainment, spiritual beliefs, creed, culture, tribal affiliation, nationality, immigration status, political beliefs, and veteran status. With greater diversity, we can be more creative, effective, and just, and bring more varied perspectives, experiences, backgrounds, talents, and interests to the practice of planning and to the communities we serve. We recognize that achieving diversity and inclusion is an evolutionary process that requires an ongoing renewal of our commitment."

Source: American Planning Association [*Planning for Equity Policy Guide*](#), Page 6.

"Diversity is the presence of difference within a given setting. The presence of difference in a system aid in greater productivity, problem solving, enriched perspectives, and efficiency."

Source: PAS Memo May/June 2019. [*More and Better: Increasing Diversity, Equity, and Inclusion in Planning*](#). By Kendra L. Smith, PhD. Page 2

Diversity is an inclusive concept which encompasses, but not is not limited to race, ethnicity, class, gender, age, sexuality, ability, educational attainment, spiritual beliefs, creed, culture, tribal affiliation, nationality, immigration status, political beliefs and veteran status. With greater diversity, we can be more creative, effective and just, and bring more varied perspectives, experiences, backgrounds, talents and interests to the practice of planning and to the communities we serve.

Source: APA *Equity, Diversity, and Inclusion Vision, Mission and Strategy*. Updated September 2019.

American Planning Association *Equity, Diversity, and Inclusion Vision Statement*.

Original source: Policy Link. "[The Equity Manifesto](#)." 2019.

Equity

Equity is giving attention to the advantages and disadvantages that exist among groups and individuals, correction of the inequities identified, and provision of access to resources and opportunities needed.



Equity is different from diversity. Diversity invites others in, but equity modifies practices to support inclusion and flourishing. This is why the distinction between diversity and equity is so important. Diversity is largely numbers-driven. It is easier to gauge and apply metrics to. Equity, on the other hand, is largely values-driven.

Source: PAS Memo May/June 2019. [More and Better: Increasing Diversity, Equity, and Inclusion in Planning](#). By Kendra L. Smith, Ph.D. Page 2

Equity is "just and fair inclusion into a society in which all can participate, prosper, and reach their full potential. Unlocking the promise of the nation by unleashing the promise in us all." The inclusive, holistic nature of this definition provides the foundation for considering and applying an equity process in all facets of planning, all levels of planning, all means of planning, and in all planning policies, working to eliminate socio-economic disparities.

APA Equity, Diversity, and Inclusion Vision, Mission and Strategy. Updated September 2019.
American Planning Association Equity, Diversity, and Inclusion Vision Statement.

Environmental Injustice

Environmental justice is defined by the U.S. Environmental Protection Agency as "fair treatment and meaningful involvement of all people regardless of race, color, national origin, or income with respect to the development, implementation and enforcement of environmental laws, regulations and policies." The movement toward environmental justice was started primarily by people of color and grew from a recognition that the poor and people of color are those who most often live in or near America's most polluted environments.

Source: American Planning Association [Planning for Equity Policy Guide](#), Page 8. Injustice is the absence of fair treatment and meaningful involvement.

Source: American Planning Association [Planning for Equity Policy Guide](#)

Harassment

According to the EEOC, harassment is unwelcome behavior. It must be relatively severe or pervasive in nature. Petty slights, annoyances, and isolated incidents (unless extremely serious) will not rise to the level of harassment. Most of the unacceptable behaviors noted below are related to the workplace, but planners should make sure that information they communicate on any form of social media respect these norms.

Types of harassment and examples include:

1. Verbal/Written

- Sending emails with offensive jokes or graphics about race or religion



- Repeatedly requesting dates or sexual favors in person or through other forms of communication.
- Asking about family history of illnesses or genetic disorders
- Making derogatory comments about someone's disability or age
- Imitating someone's foreign accent behind their back.
- Posting information on social media of a derogatory nature.

2. Physical

- Lewd hand gestures or other gestures meant to convey curse words
- Unwanted touching of a person or their clothing
- Frequently following or standing too close to a person on purpose
- Making sexually suggestive facial expressions
- Playing music with offensive or degrading language

3. Visual

- Wearing clothing with offensive or vulgar language
- Displaying posters or pictures of a sexual nature
- Showing other people sexually suggestive text messages or emails or social media posts.
- Watching pornographic or violent videos
- Drawing violent or derogatory images

Source: [3 Types Of Workplace Harassment To Watch Out For](#), Everfi.com

Historic Patterns of Inequity

Low-income residents, communities of color, tribal nations, and immigrant communities have disproportionately experienced some of the greatest environmental burdens and related health problems. This inequity is the result of many factors: inappropriate zoning and negligent land use planning; failure to enforce proper zoning or conduct regular inspections; deed restrictions and other discriminatory housing and lending practices; the prioritization of business interests over public health; development patterns that tend to concentrate pollution and environmental hazards in certain communities; and the like.

Source: American Planning Association [Planning for Equity Policy Guide](#), Page 9 in a citation attributed to [SB 1000 Implementation Toolkit: Planning for Healthy Communities](#), which was published in 2017 by PlaceWorks and the California Environmental Justice Alliance.

Historically marginalized/underrepresented communities — Groups denied full participation in the mainstream cultural, political, and economic activities.



Groups and communities that experience discrimination and exclusion (social, political and economic) because of unequal power relationships across economic, political, social and cultural dimensions.

Source: [National Collaborating Center for Determinants of Health](#).

Historically marginalized/underrepresented communities include:

- Cultural minorities
- Ethnic minorities
- Indigenous communities
- Low-income individuals
- LGBTQ+
- People of color
- People with health issues that are unseen
- People with disabilities
- People with limited English ability
- People with various political beliefs
- People with uncertain immigration status
- Prisoners
- Senior citizens

Inclusion

Inclusion "demonstrates an environment in which all individuals are treated fairly and respectfully; are valued for their distinctive skills, experiences, and perspectives; have equal access to resources and opportunities; and can contribute fully to the organization's success."

Source: *APA Equity, Diversity, and Inclusion Vision, Mission and Strategy* Updated September 2019. American Planning Association *Equity, Diversity, and Inclusion Vision Statement*.

Original source: American Library Association. "[Equity, Diversity, Inclusion: An interpretation of the Library Bill of Rights](#)." 2007.

Indigenous Peoples

Indigenous Peoples are distinct social and cultural groups that share collective ancestral ties to the lands and natural resources where they live, occupy or from which they have been displaced. The land and natural resources on which they depend are inextricably linked to their identities, cultures, livelihoods, as well as their physical and spiritual well-being. They often subscribe to their customary leaders and organizations for representation that are distinct or separate from



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those of the mainstream society or culture. Many Indigenous Peoples still maintain a language distinct from the official language or languages of the country or region in which they reside.

Source: [World Bank definition](#)

Privilege

A right or benefit that is given to some people and not to others

Source: [Merriam Webster Dictionary](#)

White privilege is an institutional (rather than personal) set of benefits granted to those of us who, by race, resemble the people who dominate the powerful positions in our institutions. One of the primary privileges is that of having greater access to power and resources than people of color do.

Source: [Understanding White Privilege](#) by Francis E. Kendall, Ph.D., © 2002

Social Justice

The goal of social justice is not met when underserved populations shoulder the weight of untenable living conditions, and subsequently experience no material benefit after community improvements are implemented. Instead, social justice requires the examination of both the positive and negative impacts of community improvements on all community members so that all members benefit and no one group or neighborhood is unfairly disadvantaged. This results in "paying it forward," by improving conditions for future residents.

Source: American Planning Association [Planning for Equity Policy Guide](#), Page 5

Substantial Injury

A real and immediate physical injury or a resulting adverse physical condition of a substantial nature to one or more persons.

Source: [Lawinsider.com](#)

The act or practice must cause or be likely to cause substantial injury to consumers. Substantial injury usually involves monetary harm. Monetary harm includes, for example, costs or fees paid by consumers as a result of an unfair practice. 5 An act or practice that causes a small amount of harm to a large number of people may be deemed to cause substantial injury. Actual injury is not required in every case. A significant risk of concrete harm is also sufficient. However, trivial or merely speculative harms are typically insufficient for a finding of substantial injury. Emotional



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impact and other more subjective types of harm also will not ordinarily amount to substantial injury. Nevertheless, in certain circumstances, such as unreasonable debt collection harassment, emotional impacts may amount to or contribute to substantial injury.

Source: Consumer Financial Protection Bureau, [Consumer Laws and Regulations](#), Page 2